

24SMCV02574 24SMCV02574

County: los-angeles

Division: Civil Law and Motion

Department: I

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The court is not likely to rule today. However, the court provides some questions for purposes of the argument.

First, what is the parties' take on the effect of Bonni.

Second, the court's view is that in order to resolve the motion, it needs to consider the specific allegations as against each moving party. In other words, there might be many allegations that are background, or are relevant to the case against the UC. But the court believes that the only ones pertinent to this motion are those against the moving defendants. The court would like to know if anyone disagrees.

Third. From plaintiff, what are the specific allegations upon which you rely that, if true, would support your claims as to the causes of action against the individual defendants?

Fourth. How do the incorporation by reference allegations play into that?

Fifth. What about the IIED cause of action. How should the court interpret the charging allegations there? While the court can agree that as to causes of action with specific elements (like battery) only the charging allegations going to the elements are pertinent, can the same be said of IIED?

Sixth. What is

the effect of the conspiracy cause of action?

Of course, civil conspiracy is not a tort, and thus it ought not be a cause of action at all. But does that

series of allegations have any effect on extending liability or the charging allegations beyond that to which they otherwise would apply?

Seventh. What

exactly is plaintiff's specific evidence to support each cause of action. And what is defendant's contrary evidence or objection to make that evidence inadmissible?

If that evidence stands, why would plaintiff not have established

"minimal merit," which is all plaintiff need do at this stage? Or does defendant believe that a higher showing is required, and, if so, on what authority?

Eighth. Does

anyone really believe that plaintiff's motion for sanctions ought to be decided today? The court believes not.